

SECTION 4.3 — ANTI-HARASSMENT AND WORKPLACE CONDUCT POLICY

4.3.1 Policy Statement

NexaGen Technologies Inc. is committed to maintaining a workplace free from harassment, discrimination, and inappropriate conduct. All employees, regardless of position or tenure, are expected to treat colleagues with dignity and respect. This policy applies to all work-related settings, including offices, client sites, company events, and digital communications.

4.3.2 Prohibited Conduct

The following conduct is strictly prohibited and may result in disciplinary action up to and including termination:

(a) Unwelcome comments about an individual's appearance, body, clothing, or personal characteristics; (b) Repeated unwanted personal attention or social invitations; (c) Abuse of supervisory authority, including unnecessary after-hours work requests targeting specific individuals; (d) Creating an intimidating, hostile, or offensive work environment; (e) Retaliation against any person who reports harassment or participates in an investigation.

4.3.3 Disciplinary Framework — Repeated Offenses

Disciplinary action for violations of this policy shall be progressive and proportionate to the severity and frequency of the conduct:

First substantiated offense: Minimum verbal warning, up to written warning and mandatory workplace respect training. The specific action shall be determined by the severity of the conduct and the employee's role (supervisory employees may receive more severe consequences).

Second substantiated complaint within a 24-month rolling period: A second substantiated complaint of harassment or inappropriate conduct within a 24-month period shall result in a **minimum of suspension without pay for no fewer than five (5) business days**, up to and including termination, at management discretion in consultation with Human Resources and Legal. Supervisory employees who commit a second offense may also be subject to demotion or removal from supervisory responsibilities.

Third substantiated complaint or any single severe offense: Termination of employment.

4.3.4 Reporting Procedures

Employees who experience or witness harassment should report it to: (a) Their direct supervisor (unless the supervisor is the subject of the complaint); (b) Human Resources; (c) The anonymous ethics hotline at 1-800-555-ETHIC; (d) Any member of the management team. All complaints will be investigated promptly, thoroughly, and as confidentially as possible.

4.3.5 Investigation Process

Upon receipt of a complaint, HR Investigations will: (a) Acknowledge receipt within 24 hours; (b) Interview the complainant, respondent, and all identified witnesses within 10 business days; (c) Review all relevant documentation including employee files, email records, and attendance records; (d) Prepare a written

investigation report with findings and recommendations; (e) Forward the report to Legal for review before any disciplinary action is taken; (f) Notify the complainant of the outcome within 5 business days of the investigation's conclusion.

4.3.6 Confidentiality

All parties involved in a harassment investigation are required to maintain confidentiality to the extent possible. Unauthorized disclosure of investigation details may itself result in disciplinary action. Investigation files shall be maintained separately from personnel files and accessed only by authorized HR personnel, Legal, and senior management with a legitimate need to know.

4.3.7 Non-Retaliation

NexaGen strictly prohibits retaliation against any employee who, in good faith, reports harassment or participates in an investigation. Retaliation is itself a terminable offense.

Approved By: Jennifer Walsh, Chief People Officer | **Legal Review:** Robert Kim, General Counsel

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